

Form of Agreement

LEASE DEED

THIS LEASE DEED (“Deed”) is made and executed at _____ on this ____ day of _____, 2016

BY AND BETWEEN

DHOLERA INDUSTRIAL CITY DEVELOPMENT LIMITED, PAN _____, a Company incorporated under the provisions of the Companies Act, 2013 and having its registered office at Block no 1, 6th floor, GICC premises, Udhog Bhavan, Sector -11, Gandhinagar – 382017, having CIN: U45209GJ2016SGC085839 and represented by its Authorized Signatory/Director _____ (hereinafter referred to as the “**Lessor**”, which expression shall unless repugnant to the context and meaning

thereof be deemed to mean and include its executors, administrators, representatives and permitted assigns) of the **ONE PART**

AND

_____, having PAN _____, a company incorporated under the provisions of the Companies Act, 1956/2013 and having its registered office at _____,
and having CIN: _____ represented by its Authorized Signatory/Director _____, (hereinafter referred to as the “**Lessee**”, which expression shall unless repugnant to the context and meaning thereof be deemed to mean and include its executors, administrators, representatives and permitted assigns) of **OTHER PART**

The Party of the One Part and the Party of the Other Part are hereinafter jointly referred to as “**Parties**” and severally as “**Party**”.

WHEREAS:

- A. The Government of Gujarat vide G.R. No. JMN-Industry-1610-4033-A-I dated 12.01.2011 has transferred 28,502 hectares of Government Land within Dholera Special Investment Region (“**DSIR**”) to Dholera Special Investment Regional Development Authority (“**DSIRDA**”);
- B. Thereafter, the Government of Gujarat vide G.R. No. SIR-112015-23-I dated 03.06.2015 authorized DSIRDA to transfer 5,205 hectares of land as equity participation on behalf of State Government to the proposed city-level SPV;
- C. Further, Government of India through NICDIT (erstwhile *DMIC Trust*) and the Government of Gujarat through *DSIRDA* in equity stake of 49:51 respectively formed a joint venture company under the name and style “*Dholera Industrial City Development Limited*” (DICDL) i.e. the Lessor herein, vide G.R. No. SPV/112015/2499/I dated 02.12.2015 as project development agency for development of Dholera Special Investment Region in that area;
- D. DSIRDA has transferred the land to the tune of _____ hectares in to DICDL for development of the project through Conveyance Deed Nos. 185, 186, 187, 188,

189 and 190 dated 01.02.2016. The relevant land is situated within the taluka limit of Dholera more particularly described in the Schedule written thereunder (hereinafter referred to as "Lease Deed" and land sold thereunder has been referred to as the "Land"). The buyer has paid all the amounts payable as on date to the seller under the lease Deed;

- E. As per the terms of the Lease Deed, DICDL is permitted to lease the purchased Land, to the unit holders, subject to compliance of the provisions of the Lease Deed, relevant laws and regulations;
- F. Further, the Ministry of Environment, Forests and Climate Change has accorded Environmental Clearance to the Project vide Order No. "F.No.21-20/2011-IA.III section" dated 19.9.2014.
- G. The Lessee is a _____ currently engaged in the business of _____, and has represented to have the necessary experience, know-how and resources for this purpose and is further, desirous of setting up a _____ (hereinafter referred to as the "**Facility**") in the said LAND falling under TP _____ and for that purpose has approached the Lessor for the grant of the land admeasuring _____ Sq. Mtrs. (_____ Acres approximately) i.e. Plot No. _____ out of the said TP _____ LAND, which portion is specifically marked in Red Colour boundary line over the map attached herewith as ANNEXURE-II and the same has been referred to hereinafter as the "**DEMISED LAND**" and more particularly described in ANNEXURE-I, for the sake of convenience, on leasehold basis;
- H. In pursuance of the same, the Lessor has allotted the said Demised Land to the Lessee, vide an Allotment Letter dated [_____] and have further agreed to grant the leasehold rights over the said Demised Land in favour of the Lessee for a period of 99 (*Ninety Nine*) years, subject to provisions of the Lease Deed and on the terms and conditions, stated here under;
- I. In pursuance of what is stated herein above, the Lessor have agreed to give on lease and the Lessee has agreed to avail on lease the Demised Land on leasehold basis for the period, terms and conditions, rights to the Lessee as appearing

hereinafter, and in pursuance of the same, the Parties are entering in to this Deed of Lease of the Demised Land, on the terms and conditions herein contained.

NOW THE TERMS AND CONDITIONS OF THIS DEED OF LEASE WITNESSETH AND IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS UNDER:

1. LEASE PERIOD

- 1.1. In consideration of the lease rent and the lease premium herein reserved and all the covenants and conditions contained hereinafter and to be performed by the Parties, the Lessor do hereby grant and demise unto Lessee, by way of lease, the Demised Land along with all rights to use the access roads, entrances, passages, ways, etc. to the Demised Land and to make available to Lessee all easements and appurtenances thereto for a period of **99 (Ninety Nine) years**, commencing from the date of execution of this Deed (hereinafter referred to as “**the Lease Period**”). The Parties may by mutual consent and on revised conditions extend the term of this Deed, in writing.

2. LEASE RENTAL AND PREMIUM

Lease Rental

- 2.1. It is mutually agreed that the annual lease rent for the Demised Land shall be Re. 1/- per sq. meter per year, payable annually along with the service tax, if applicable, at actuals (hereinafter referred to as “**Lease Rental**”);
- 2.2. The Lessee shall pay to the Lessor the first Lease Rental on or before execution of this Deed and the Lease Rental for the subsequent years shall be payable in advance by the 31st March of preceding year for example for the financial year 2017 – 2018, the Lease Rental shall be paid by 31st March, 2017, as per the then prevailing laws, rules and regulations. For this purpose, a year shall be counted as twelve full months commencing from 1st April to 31st March of every succeeding year.

Lease Premium

2.3. The Lessee shall pay a non-refundable Lease Premium amounting to Rs. _____/- (Rupees _____ Only) to the Lessor for the grant of leasehold rights over the said Demised Land ("**Lease Premium**"). The said Lease Premium has been paid in the following manner:

a. Rs. _____/- - 10% booking amount of premium received by the Lessor out of the total amount of Lease Premium, as booking amount vide DD no. / Transaction ID no. _____ dated _____ drawn on _____ in the name of the present Lessor.

b. Rs. _____/- - being 30% of the total amount of the Lease Premium, on execution of the Lease Deed vide DD no. / Transaction ID no. _____ dated _____ drawn on _____ Bank in the name of the present Lessor.

c. Rs. _____/- - being 60% of the total amount of the Lease Premium, on execution of the Lease Deed vide DD no. / Transaction ID no. _____ dated _____ drawn on _____ Bank in the name of the present Lessor.

2.4. The Lessor hereby states that on the date of execution of this Deed it has received the total amount of the Lease Premium from the Lessee. The Parties hereby agree that the said Lease Premium is non-refundable in nature, and under no circumstances shall the Lessee demand the refund of the Lease Premium;

2.5. The Lessor has handed over the peaceful, vacant and physical possession of the Demised Land to the Lessee on execution of this Deed and Lessee has accepted the same.

3. TERMS OF CONSTRUCTION

3.1. The Lessee shall do the following before commencement of construction:
i) Obtain development permission from Dholera Special Investment

Region Development Authority (DSIRDA); ii) Obtain Consent to Establish (CTE) from the Gujarat Pollution Control Board, for setting up of the unit under applicable Laws/regulations.

- 3.2. The Lessee shall ensure that no work shall commence which infringes the terms of construction and also other regulations;
- 3.3. The Lessee shall, within the period of 12 months from the date of execution of this Deed commence the construction of building on the Demised Land if Environmental Clearance (EC) is not required as per EIA notification 2006, as per approved plans;
- 3.4. If the EC is required as per EIA notification 2006, the Lessee shall obtain the same and commence the construction of a building within a period of 18 months from the date of execution of this Lease Deed as per the approved plans;
- 3.5. The Lessor may fix any extended period but not more than 6 months for the start of the building and other works, if Lessor is satisfied that the building and the works could not be started within the prescribed time limit for the reasons beyond the control of the Lessee and thereupon, the obligations hereunder of the Lessee, to start the building and the works shall be the extended period;
- 3.6. If the building construction is not started within the said period or the extended period given by the Lessor, the Lessee will be levied construction penalty at 0.25% per month on the allotment price of the Demised Land paid by the Lessee. The penalty will be levied from the start date of extension period up to the construction commencement date;
- 3.7. The Lessee shall not make any alteration, modification or changes in construction therein without prior written consent of Lessor and the relevant authorities except the regular changes / modifications which are not structural in nature;

3.8. The Lessee shall at its own costs and expenses fence the Demised Land and undertake such other work in accordance with the applicable Laws, Rules and Regulations and amended from time to time;

3.9. Until the building work is completed and certified as completed by relevant authorities and the price is paid in full or the Lease Deed is executed in accordance with Clause 1 thereof, the Lessor and his officers shall have the right to enter upon the demised land to review the state and progress of the work and for all other purposes at all reasonable time;

3.10. The Lessee shall complete construction and obtain Consent to Operate (CC&A) from Gujarat Pollution Control Board (GPCB) within three years from the date of execution of this Lease Deed and shall intimate the date of obtaining CC&A to the Lessor, failing which Lessor is entitled to take back the possession of the Demised Land unless extension is given by the Lessor.

Provided that on the application by the Lessee, the Lessor may from, time to time, extend the aforesaid period by such a period or periods, as may be specified, therein so however, that the period or periods so extended shall not in any case exceed "three years" in aggregate.

In case the CC&A is not obtained within the said period or extended period, Lessor after giving notice for period of 30 days, will levy penalty at 0.5% per month on the allotment price of the Demised Land paid by the Lessee. The penalty will be levied from the start date of extension period up to the production commencement date;

3.11. If, the Lessee has taken any excess land for future expansion and thereupon approved by Lessor and other concerned authorities, the Lessee has to utilize the excess land adhering to the following conditions:

- (i) Excess land shall be fully utilized for the expansion within the period as mentioned by Lessee in phase wise development plan.
- (ii) The Lessor is open to review progress of land utilization at the interval of every three years.

- (iii) If the building is not constructed in the excess land within the said period, the Lessor shall provide extension of three years.
 - (iv) If the building is not constructed in the excess land within the extended period, the Lessor after giving reasonable notice to the Lessee, resume the land free from all the encumbrances.
 - (v) The part to be utilized for the construction of the building shall be so demarcated by the Lessee at their own cost and the demarcation to be approved by DSIRDA and DICDL so as to make a subdivision of the excess land portion feasible in the event of the Lessor deciding to resume the possession of the unutilized portion of the plot.
- 3.12. The Lessee shall at his own cost construct and maintain an internal road/s within boundary wall of the said land in strict accordance with the specifications and details prescribed by the competent officer of the Lessor.

4. LESSOR'S COVENANTS

The Lessor hereby covenants, warrants and represents with the Lessee that:

- 4.1. The Lessor has the legal right to transfer the Demised Land on leasehold basis in favour of the Lessee and the title of the Lessor to the Demised Land is clear, marketable, and free from encumbrances;
- 4.2. The Lessee hereby reserved shall be entitled to peaceful possession and peaceful enjoyment of the Demised Land for the entire Lease Period or the extended/renewed period if any, without any hindrance, interruption or disturbance by or from the Lessor or any person acting on behalf of the Lessor, subject to the compliance of the terms and conditions of this Deed and other prevailing laws and regulations pertaining to the said Land by the Lessee;
- 4.3. The Lessor agrees that till full repayment of loan facilities availed by the Lessee from Lenders, the Lenders shall have a right to step in and exercise all the powers and authority granted to the Lessee hereunder as well as be responsible as the Lessee, in case the Lessee fails to timely repay any/all the installments of the loan.

5. COVENANTS OF LESSEE

Lessee hereby covenants with the Lessor that:

- 5.1. The Lessee, its subsidiaries and / or group concerns is authorized to establish, operate and/or manage its business activity which is legally permitted in India;
- 5.2. The Lessee shall use the Demised Land in a fair manner without causing any damage to the same;
- 5.3. The Lessee confirms, warrants and represents that there is no bar and/or restriction on the Lessee to sign and execute this Deed and take the Demised Land on leasehold basis for the purpose of the aforementioned Facility.
- 5.4. The Lessee shall regularly pay to the Lessor or to its order the Lease Rental hereby reserved at the time and in the manner aforesaid subject to increase as provided herein above, subject to statutory deductions such as Tax Deductions at Source (TDS), if applicable;
- 5.5. In the event any payment is due by the Lessee to the Lessor and the same is not paid, the Lessee shall be liable to pay interest at the rate of 12% per annum till the date of payment of such amount. The interest rate would be subject to revision from time to time at the discretion of the Lessor and interest would be payable at such revised rate from such date as may be specified by the Lessor from time to time. The interest liability will start from the date of this Deed or after one month of the date of allotment whichever is earlier;
- 5.6. The Lessee shall carry out the operation/activities (facility) in the Demised Land specified in ANNEXURE-III and shall not be permitted to undertake activities or manufacture/process any article, thing, materials, components and instruments, which do not in any way relate to the industry other than specified in ANNEXURE-III, without the prior written permission of the Lessor;

- 5.7. The Lessee shall pay all taxes, rates, assessments and outgoing of every description in respect of the Demised Land, present or future taxes, if levied, the same shall be borne by the Lessee;
- 5.8. The Lessee shall permit the Lessor and its servants and agents to enter into and upon the Demised Land within working hours and with prior intimation/notice which shall not be less than three working days for the purpose of inspecting the condition of the Demised Land;
- 5.9. The Lessee shall deliver upon the expiration or sooner determination of the Lease hereby created the Demised Land to the Lessor in the same good order and condition in which it was at the time when the Lessee entered into and obtained possession of the Demised Land;
- 5.10. The Lessee shall take good care of the Demised Land and maintain the Demised Land, elevation, water system, drainage, sewerage etc. in good and repair conditions, and repair any damage done thereto, EXCEPT reasonable wear and tear and damages as may have been caused by fire, flood, earthquake, tempest, civil commotion, violence or any army or mob or any act of the God or other irresistible forces or accidents;
- 5.11. It is hereby understood and agreed that cost of utility connectivity, utility deposits and utility charges are not a part of this Deed and shall be separately borne by the Lessee as per the terms & conditions of the relevant service providers;
- 5.12. The Lessee shall pay the amount of Service Tax at the prevailing applicable rate leviable on the payment of Lease Rent and Lease Premium along with the Lease Rent and Lease Premium to the Lessor, which has to be paid by the Lessor to the Service Tax Department. Accordingly, the rent agreed herein is excluding service tax, however subject to TDS;

- 5.13. The Lessee shall throughout the term of the Lease Period hereby created, pay to the Lessor from time to time, any other applicable levies prescribed by the Lessor/ competent regulatory authority / statutory authority;
- 5.14. The Lessee shall also insure and keep insured at all times the building, plant and machinery including all materials on the Demised Land against all risks, for a sum at least equivalent to the total value of all the building, plant, machinery and all materials. The Lessee shall provide a copy of the insurance Policy/Renewal receipt to the Lessor;
- 5.15. The Lessee shall not do or permit anything to be done or stored (except those for production of products approved for manufacture in the Demised Land) which may be of a nuisance, annoyance, danger or disturbance to the owners, occupiers or residents of other premises in the vicinity;
- 5.16. The Lessee shall fully comply with and not violate any of the provisions and terms and conditions of the Lease Deed and shall ensure that the same remain valid and subsisting during the Lease Period;
- 5.17. The Lessee shall duly comply with the provisions of The Water (Prevention and Control of Pollution) Act, 1974 and Air (Prevention and Control of Pollution) Act, 1981 and the Rules made thereunder and also with any condition which may, from time to time be imposed by the Gujarat Pollution Control Board constituted under the said Acts as regards the collection treatment and disposal or discharge of effluent or waste or otherwise howsoever and shall indemnify and keep indemnified the Lessor against the consequences or any breach or non-compliance of any such provision or condition as aforesaid. The Lessee shall obtain the No Objection Certificate/Permission with respect to consent to establish and operate the Facility from the Gujarat Pollution Control Board and all such clearances as required under the provisions of various laws, regulations, rules, policies, circulars, government resolutions of the Government of India, Government of Gujarat, other authorities prevailing from time to time and also observe

strictly all terms and conditions contained in the Environmental Clearance Certificate referred in 'F' above. If The Lessee without complying with the pollution measure starts or continues with their industrial activity, the Lessor shall be duty bound to instruct utility service providers for disconnection of electricity supply and water supply of the Lessee without prior notice;

- 5.18. The Lessee shall observe and conform to all rules and statutory regulations of GDCR of Dholera Special Investment Region Development Authority/any other concerned authority relating to public health and sanitation in force for the time being and to provide sufficient latrine facilities accommodation and other sanitary arrangements for labourers, workmen and other staff employed on the Demised Land or any structure constructed thereon in order to keep the Demised Land and surroundings clean and in good condition to the satisfaction of the Lessor;
- 5.19. The Lessee will obtain any service, amenity or facility like water, drainage, electricity etc. directly from the concerned utility as appointed by Government. The Lessee shall not hold the Lessor responsible in case of any delay, deficiency, insufficiency or failure in supply of such amenity, facility or service;
- 5.20. A Lessee identified as Category 1 - Lessee is a unit in the business of manufacturing or providing services from the demised land & will use the whole land for its own business purpose. The Lessee will have the right to transfer the lease hold rights and/or any other right/s acquired by it by virtue of the present Lease Deed in relation to the Demised Land and/or portion thereof in favour of any third person as per the provisions of the prevailing Land Allotment Policy of DICDL. It is hereby agreed and stipulated that the Lessee shall not be liable to pay any transfer charges as prescribed in the prevailing Land Allotment Policy of DICDL, if the transfer is between the Lessee and a Lessee Group Company at book value. Lessee Group Company shall mean any entity or body corporate where 26% or more of the equity securities is held by Lessee, its subsidiaries or its associate companies;

- 5.21. It is hereby agreed and stipulated that the Lessee shall not be liable to pay any transfer charges as prescribed in the prevailing Land Allotment Policy of DICDL, if Lessee wants to establish manufacturing facility as mentioned in Annexure – III after forming a Special Purpose Vehicle (SPV) where Lessee will have 26% or more of the equity stake
- 5.22. A Lessee identified as Category 2 – The Lessee has applied for land allotment as a manufacturing or service provider but requires land to be allotted to 3rd parties who are parties supports the primary business of the Lessee like a vendor park or the Lessee's declared business is allotting land or built up space to 3rd parties like a logistic or industrial park, etc. The Lessee will have the right to transfer the lease hold rights and/or any other right/s acquired by it by virtue of the present Lease Deed in relation to the Demised Land and/or portion thereof in favour of any third person as per the provisions of the prevailing Land Allotment Policy of DICDL;
- 5.23. The Lessee shall permit the Lessor, its employees, officers, agents and authorized representatives or any of their authorized officer from time to time and at all reasonable times of the day during the Lease Period hereby granted after a reasonable period notice which shall not be less than three working days to enter into and upon the Demised Land and to inspect the state of work and if upon such inspection it shall appear that any repairs are necessary or under applicable laws, they or any of them may by notice to the Lessee call upon it to execute the repairs and upon its failure to do so within a reasonable time, the Lessor may ask any PWD/other agency to execute the same at the expense of Lessee. The Lessee shall pay such expenses to the Lessor within 30 days of intimation. In the event of failure to pay such expense within the aforementioned period, the Lessee shall be liable to pay interest at the rate of 12% per annum until such amounts are paid;
- 5.24. The Lessee shall comply with all rules and regulations prescribed under all Labour Legislations including but not limited to Industrial Disputes Act, Workmen's Compensation Act, Payment of Wages Act, Minimum Wages Act,

Factories Act and Fatal Accidents Act or any other statutes governing employer employee relationships;

- 5.25. The Lessee shall not be entitled to create charge, lien, and mortgage or otherwise create any encumbrance in respect of the Demised Land either in whole or in any part thereof without the prior written consent of the Lessor. A prior written permission from the Lessor is required if a charge is created in favour of Banks or any Financial Institutions providing finances to the Lessee for development of any facility on the Demised Land. Therefore, no premium/transfer fee shall be payable to Lessor for creating any mortgage or charge on the Demised Land in relation to finance provided to the Lessee by any Banks/Financial Institutions. Any such liability or encumbrance created in favour of Banks/Financial Institutions providing finance to the Lessee shall not affect the rights and interest of the Lessor in respect of the Demised Land. It is clarified for removal of doubt that the Lessee shall have a right to assign any and/or

all its rights and obligations under this Deed in favour of the Lenders or their nominees. The Lessee shall alone be responsible for discharging its obligations under the terms of such encumbrance and shall keep the Lessor indemnified against all loss, liability and costs as may be incurred or suffered by the Lessor in this behalf;

- 5.26. The Lessee shall comply with the parking regulations and other general instructions as per the regulations mentioned in GDCR prepared by Dholera Special Investment Region Development Authority;

- 5.27. The Lessee shall indemnify and keep indemnified the Lessor against any and all claims for damages which may be caused to any adjoining building or other premises by such authorised operations or in consequence of the execution of any work in the Demised Land and also against all payments whatsoever which during the progress of the work become payable or be demanded by any authority in respect of the said works or of anything done under the

authority herein contained or for breach of any of the covenants of this Lease or the said Lease deed.

- 5.28. The Lessee agrees to indemnify and keep indemnified the Lessor from and against all action, proceedings or any costs, charges, expenses, losses or damages incurred or suffered by or caused to the Lessor, in respect of the Demised Land by reasons of any breach or non-observance, nonperformance of the conditions herein contained by the Lessee in respect of the Demised Land.

6. BREACH

- 6.1. As per the terms of this Deed, a breach shall consists of any of the following acts:-

i) If, Lessee, uses any portion of the Demised Land for any purpose whatsoever other than specified in the control regulations / allotment letter or shall not use in such a manner which may or is likely to cause nuisance or annoyance to the occupiers of any other adjoining neighboring properties; or ii) If, Lessee, suppresses any facts or fraud at the time of allotment; or iii) If any act/omission of the Lessee constitutes a breach of any condition as mentioned in Lease Deed, Sale Deed and, Government Resolutions; or iv) If any act/omission of the Lessee is not in compliance with terms of this Deed.

- 6.2. if any Events of Default shall have occurred, unless such Event of Default has occurred solely as a result of any breach of this Lease Deed by Lessor, the Lessee shall be deemed to be in default of this Lease Deed and Lessor shall by a notice in writing ("Default Notice") specify in reasonable detail and call upon the Lessee to cure or remedy the default within a period of 60 (sixty) days or such other extended time as Lessor may specify, from the date of receipt of the Default Notice.

- 6.3. Failure of the Lessee to cure or remedy the Event of Default within the Cure Period shall constitute a breach of this Lease Deed giving Lessor a right to terminate this Lease Deed.

7. TERMINATION AND SURRENDER

- 7.1. This Lease shall automatically come to an end on expiry of the Lease Period;
- 7.2. In the event of termination of this Deed under Clause 7.1 or due to a breach as described in Clause 6 herein above;

The Lessee shall be liable to handover / deliver to the Lessor the vacant possession of the Demised Land in its original condition as he entered into, to the satisfaction of the Lessor. Provided that in case of termination of this Deed under Clause 6, the Lessor shall give 60 days' notice in writing allowing the Lessee to remove the buildings, machineries, things, materials, etc. and vacate the Demised Land and hand it over to the Lessor in a peaceful manner to the satisfaction of the Lessor.

- 7.3. If the Lessee wants to surrender/exit the Demised Land to the Lessor, it shall be subject to the conditions mentioned in Clause 2.10.3 of prevailing Land Allotment Policy of DICDL.

- 7.4. At the time of termination/surrender,

The Lessee shall have paid the all the dues, taxes, levies, rates and assessments then due and shall have performed and observed all conditions herein contained prior to the expiration/termination of the Lease Period.

Provided, however that the Lessee shall always remain liable for any consequences of any defaults that may have been committed by the Lessee during the Lease Period.

- 7.5. The Lessor will not be responsible for any amount spent by the Lessee towards the Demised Land of any nature whatsoever.

8. DISPUTE RESOLUTION

8.1. In the event a dispute arises in connection with the interpretation or implementation of the provisions of this Deed, the Parties shall attempt in the first instance to resolve such dispute through amicable discussion. If the dispute is not resolved through amicable discussion within thirty (30) days after commencement of discussions or such longer period as the Parties agree in writing, then such dispute shall be settled by Arbitration. The arbitral tribunal shall consist of a sole arbitrator appointed by mutual agreement of the parties. In case of failure of the parties to mutually agree on the name of a sole arbitrator, the dispute shall be refer to the competent courts in whose jurisdiction the Demised Land is situated;

8.2. This Deed shall be governed by the laws of India;

9. GENERAL INDEMNITY

The Lessor shall indemnify and keep indemnified the either party, from and against the non observance and performance of the terms and conditions under this Lease Deed and from any losses, damages, costs, charges and expenses or proceedings which the Lessee may suffer or be put to or occasioned by reason of any breach, default, act or omission of the Lessor or of its servants, agents, occupants, or any person claiming by or through it.

10. REGISTRATION COSTS & EXPENSES

All charges and expenses including stamp duty, registration fee and incidental expenses for registration of this Lease Deed shall be borne by the Lessee.

Parties shall bear their own cost for any legal fees.

11. SEVERANCE

If any provision of this Deed is rendered void, illegal or unenforceable in any respect under any law, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby. Should any provision of this Deed be or become ineffective for reasons beyond the control of the Parties, the Parties shall use reasonable endeavors to agree upon a new provision which shall as nearly as possible have the same commercial effect as the ineffective provision.

12. ENTIRE DEED

This Deed with its schedules/annexure (i) constitutes the entire agreement between the Parties, and (ii) supersedes all prior and contemporaneous agreements and / or written communications, with respect to its subject matter.

13. WAIVER

No waiver of any breach of any provision of this Deed shall constitute a waiver of any prior, concurrent or subsequent breach of that provision or any other provision of this Deed. No waiver shall be effective unless made in writing and signed by the authorised representative of both Parties. Also failure of the Lessee / Lessor to enforce at any time or for any period of time the provision hereof shall not be construed to be waiver of any provisions or of the right thereafter to enforce each and every provision.

14. FORCE MAJEURE

If at any time during the term of this Deed, the performance in whole or in part by either Party of any obligation under this Deed is prevented or delayed by reasons of any war, or government restriction/regulation, acts of the public enemy, civil commotion, major fires, major floods, serious explosions, big epidemics, major strikes and lockouts or act of God (hereinafter referred to as "**Force Majeure Events**"), provided notice of happening of any Force Majeure Event is given by either Party to the other Party within reasonable time from the date of occurrence thereof, neither Party shall have any claim for damages against other Party in respect of such non-performance or delay in performance, and deliveries under the Deed shall be resumed

as soon as practicable after such a Force Majeure Event comes to an end or ceases to exist.

15. AMENDMENT

This Deed shall not be changed or modified except by written amendment mutually agreed by the Parties and if any provision of this Deed shall be held/ determined to be void or unenforceable under applicable law such provision shall be deemed amended or deleted in so far as is inconsistent with the law and the Deed shall remain valid and enforceable subject to such deemed amendments/ deletions.

16. REASONABLENESS

Each party to this Deed confirms it has had sufficient opportunity to obtain legal advice relating to all the matter provided for in this Deed and agrees that having considered the terms of each clause and the agreement as a whole that the provisions of each clause and this agreement are fair and reasonable.

17. INTERPRETATION

Unless the context otherwise indicates:

- (a) A reference to this Deed or another document includes any variation or replacement of either of them.
- (b) Headings are inserted for convenience only and do not affect the interpretation of this Deed.
- (c) If a provision of this Deed is inconsistent with the provision of another letter of intent or agreement between the parties made before the date of this Deed, the provision of this Deed prevails.

- (d) A reference to a statute or other law includes regulations and instruments under it and all consolidations, amendments, reenactments or replacements of any of them.
- (e) A reference to this Deed incorporates a reference to the Schedules/Annexures to this Deed.
- (f) References (including defined terms) to the singular include the plural and vice versa and to a person includes body corporate and vice versa.